

****January 15, 2024****

****A New Sanction for Non-Compliance with GDPR****

The National Authority for the Supervision of Personal Data Processing has completed, in December of last year, an investigation into the operator TECHNINK LEB SRL and found a violation of the provisions of Article 32 paragraph (1) letters a), b), and d), in conjunction with Article 32 paragraph (2) of the General Data Protection Regulation (GDPR). As such, the operator was sanctioned with a fine of 14,904.30 lei, equivalent to 3,000 EURO.

The investigation was initiated following the operator's notification of a personal data security breach under the General Data Protection Regulation. The data security breach occurred as a result of the unauthorized disclosure of personal data (ID, address, name, surname, email address, company, sales, activity, newsletter subscription, registration, and last visit) for a significant number of clients, with this data being accessible on the operator's website.

During the investigation, it was found that the operator had not implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risk presented by the processing, particularly generated by the unauthorized disclosure or unauthorized access to the personal data stored.

Additionally, under Article 58 paragraph (2) letter d) of the GDPR, the following corrective measures were ordered against TECHNINK LEB SRL:

1. Implementation of a plan that includes a process for the periodic testing, evaluation, and assessment of all systems and subsequent modifications made by the operator or service providers (authorized persons), particularly concerning the website managed by the operator;
2. Development and implementation of procedures for password complexity, especially for administrator accounts, which include specific requirements regarding: minimum password length, variety of characters, expiration period, as well as the impossibility of reusing a previously registered password.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****